

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 1225 By: West (Kevin) and Woolley of
3 the House
4 and
5 Bergstrom of the Senate
6
7

8 An Act relating to vital records; amending 63 O.S.
2021, Section 1-321, as last amended by Section 10,
9 Chapter 58, O.S.L. 2025 (63 O.S. Supp. 2025, Section
1-321), which relates to amendment of certificate or
10 records; prohibiting amendments to biological sex on
certificate of birth; and providing an effective
11 date.
12

13 AUTHOR: Add the following Senate Coauthor: Burns

14 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert
15

16 "An Act relating to vital records; providing findings
and declarations; amending 63 O.S. 2021, Sections 1-
17 311, as last amended by Section 2, Chapter 58, O.S.L.
2025, 1-313, as amended by Section 2, Chapter 87,
18 O.S.L. 2022, 1-316, as amended by Section 3, Chapter
87, O.S.L. 2022, and 1-321, as last amended by
19 Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
2025, Sections 1-311, 1-313, 1-316, and 1-321), which
20 relate to certificates of birth; updating statutory
language; requiring certificates of birth to contain
21 accurate biological sex designations; clarifying
certain requirement and prohibitions; updating
22 statutory reference; providing for noncodification;
and declaring an emergency.
23
24

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law not to be
3 codified in the Oklahoma Statutes reads as follows:

4 The Legislature finds and declares that it is enacting the
5 following statutory changes "to clarify existing law, as opposed to
6 altering its substance" per Purcell v. Santa Fe Minerals, Inc., 1998
7 OK 45, 961 P.2d 188. The Legislature further finds and declares
8 that these clarifications are important to protect, among other
9 things, the integrity and accuracy of vital statistics records. In
10 particular, the Legislature finds that private parties have been
11 wrongly asserting in court that the Legislature's previous law
12 clarifying Oklahoma birth certificate statutes, Senate Bill No. 1100
13 of the 2nd Session of the 58th Oklahoma Legislature, constituted an
14 acquiescence to the unauthorized practice of changing the biological
15 sex designation on birth certificates to represent a person's gender
16 identity. The Legislature finds and declares that Senate Bill No.
17 1100 of the 2nd Session of the 58th Oklahoma Legislature did nothing
18 of the sort; rather, it was intended to clarify, in response to
19 revelations about an unsanctioned settlement over a nonbinary
20 designation, that Oklahoma birth certificates are supposed to
21 contain a biological sex designation only, and that this designation
22 should not be altered to display gender identity, a nonbinary
23 designation, or anything other than a male or female designation.

24

1 SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-311, as
2 last amended by Section 2, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
3 2025, Section 1-311), is amended to read as follows:

4 Section 1-311. A. A certificate of birth for each live birth
5 which occurs in this state shall be filed with the State
6 Commissioner of Health within seven (7) days after the birth.

7 B. When a birth occurs in an institution, the person in charge
8 of the institution or a designated representative shall obtain the
9 personal data, prepare the certificate and secure the signatures
10 required by the certificate. The physician in attendance shall
11 certify to the facts of birth and provide the medical information
12 required by the certificate within five (5) days after the birth.

13 C. When a birth occurs outside an institution, the certificate
14 shall be prepared and filed by one of the following in the indicated
15 order of priority:

16 1. The physician in attendance at or immediately after the
17 birth;

18 2. Any other person in attendance at or immediately after the
19 birth; or

20 3. The father, the mother or, in the absence or inability of
21 the father or mother, the person in charge of the premises where the
22 birth occurred and present at the birth.

23 D. 1. If the mother was married at the time of birth, or
24 married at any time during the three hundred (300) calendar days

1 before the birth, the name of the husband shall be entered on the
2 certificate as the father of the child unless paternity has been
3 determined otherwise by a court of competent jurisdiction or a
4 husband's denial of paternity form has been filed along with an
5 affidavit acknowledging paternity, in which case the name of the
6 father as determined by the court or affidavit acknowledging
7 paternity shall be entered. If there is a refusal to identify
8 paternity on the birth certificate, the State Department of Health
9 is authorized to register a birth certificate as such.

10 2. If the mother was not married at the time of birth, nor
11 married at any time during the three hundred (300) calendar days
12 before the birth, the name of the father shall be entered on the
13 certificate of birth only if:

- 14 a. a determination of paternity has been made by an
15 administrative action through the Department of Human
16 Services or a court of competent jurisdiction, in
17 which case the name of the father shall be entered, or
- 18 b. the mother and father have agreed as to the biological
19 paternity of the child and signed an acknowledgment of
20 paternity pursuant to Section 1-311.3 of this title,
21 or substantially similar affidavit from another state
22 and filed it with the State Commissioner of Health.

23 This shall give the unmarried mother and biological father equal
24 rights and obligations to the child. A child whose parentage has

1 been determined as set forth shall be treated as a child of parents
2 who were married at the time of the birth.

3 E. Either of the parents of the child shall sign the
4 certificate of live birth worksheet to attest to the accuracy of the
5 personal data entered thereon, in time to permit its filing within
6 the seven (7) days prescribed in this section.

7 F. If the live birth results from a process in which the
8 delivering mother was carrying the child of another woman by way of
9 a prearranged legal contract, the original birth certificate shall
10 be filed with the personal information of the woman who delivered
11 the child. A new birth certificate will be placed on file once the
12 Department receives both a court order and a completed form
13 prescribed by the Department which identifies the various parties
14 and documents the personal information of the intended parents
15 necessary to complete the new birth certificate.

16 G. ~~Beginning on April 25, 2022, the biological sex designation~~
17 ~~on a~~ Every certificate of birth issued under this section shall ~~be~~
18 contain an accurate biological sex designation of either male or
19 female and, as identified at the time of birth. The biological sex
20 designation shall not ~~be~~ display gender identity, a nonbinary
21 designation, or any symbol representing a nonbinary designation
22 including, but not limited to, the letter "X".

1 SECTION 3. AMENDATORY 63 O.S. 2021, Section 1-313, as
2 amended by Section 2, Chapter 87, O.S.L. 2022 (63 O.S. Supp. 2025,
3 Section 1-313), is amended to read as follows:

4 Section 1-313. A. When the birth of a person born in this
5 state has not been registered, a certificate may be filed in
6 accordance with regulations of the State Commissioner of Health.
7 Such certificate shall be registered subject to such evidentiary
8 requirements as the Commissioner shall by regulation prescribe, to
9 substantiate the alleged facts of birth.

10 B. Certificates of birth registered one (1) year or more after
11 the date of occurrence shall be marked "delayed" and show on their
12 face the date of the delayed registration.

13 C. A summary statement of the evidence submitted in support of
14 the delayed registration shall be endorsed on the certificate.

15 D. When an applicant does not submit the minimum documentation
16 required in the regulations for delayed registration, or when the
17 State Commissioner of Health finds reason to question the validity
18 or adequacy of the documentary evidence, the Commissioner shall not
19 register the delayed certificate and shall advise the applicant of
20 the reasons for his or her action.

21 E. ~~Beginning on the effective date of this act, the biological~~
22 ~~sex designation on a~~ Every certificate of birth issued under this
23 section shall ~~be~~ contain an accurate biological sex designation of
24 either male or female and, as identified at the time of birth. The

1 biological sex designation shall not ~~be~~ display gender identity, a
2 nonbinary designation, or any symbol representing a nonbinary
3 designation including, but not limited to, the letter "X".

4 SECTION 4. AMENDATORY 63 O.S. 2021, Section 1-316, as
5 amended by Section 3, Chapter 87, O.S.L. 2022 (63 O.S. Supp. 2025,
6 Section 1-316), is amended to read as follows:

7 Section 1-316. A. The State Commissioner of Health shall
8 establish a new certificate of birth for a person born in this
9 state, when the Commissioner receives the following:

10 1. An adoption certificate as provided in the Oklahoma Adoption
11 Code, or a certified copy of the decree of adoption together with
12 the information necessary to identify the original certificate of
13 birth and to establish a new certificate of birth; except that a new
14 certificate of birth shall not be established if so requested by the
15 court decreeing the adoption, the adoptive parents or the adopted
16 person; and

17 2. A request that a new certificate be established and such
18 evidence as required by regulation proving that such person has been
19 legitimated, or that a court of competent jurisdiction has
20 determined the paternity of such a person.

21 B. When a new certificate of birth is established, the actual
22 place and date of birth shall be shown. It shall be substituted for
23 the original certificate of birth:

1 1. Thereafter, the original certificate and the evidence of
2 adoption, paternity or legitimation shall not be amended, nor shall
3 it be subject to inspection except upon order of a court of
4 competent jurisdiction or as otherwise specifically provided by law;
5 and

6 2. Upon receipt of notice of annulment of adoption, the
7 original certificate of birth shall be restored to its place in the
8 files and the new certificate and evidence shall not be subject to
9 inspection except upon order of a court of competent jurisdiction.
10 The original certificate shall be restored and may be amended in
11 accordance with Section 1-321 of this title.

12 C. ~~Beginning on the effective date of this act, the biological~~
13 ~~sex designation on a~~ Every new certificate of birth issued under
14 this section shall ~~be~~ contain an accurate biological sex designation
15 of either male or female and, as identified at the time of birth.
16 The biological sex designation shall not be display gender identity,
17 a nonbinary designation, or any symbol representing a nonbinary
18 designation including, but not limited to, the letter "X".

19 SECTION 5. AMENDATORY 63 O.S. 2021, Section 1-321, as
20 last amended by Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
21 2025, Section 1-321), is amended to read as follows:

22 Section 1-321. A. A certificate or record registered under
23 this article may be amended only in accordance with this article and
24

1 regulations thereunder adopted by the State Commissioner of Health
2 to protect the integrity and accuracy of vital statistics records.

3 B. A certificate that is amended under this section shall be
4 marked "amended", except as provided in subsection ~~D~~ E of this
5 section. The date of amendment and a summary description of the
6 evidence submitted in support of the amendment shall be endorsed on
7 or made a part of the record.

8 The Commissioner shall prescribe by regulation the conditions under
9 which additions or minor corrections shall be made to birth
10 certificates within one (1) year after the date of birth without the
11 certificate being considered as amended. Certificates shall be
12 marked as "amended" for minor corrections made one (1) year after
13 the date of birth.

14 C. Upon receipt of a certified copy of a court order, from a
15 court of competent jurisdiction, changing the name of a person born
16 in this state and upon request of such person or his or her parent,
17 guardian or legal representative, the State Commissioner of Health
18 shall amend the certificate of birth to reflect the new name.

19 D. When a child is born out of wedlock, the Commissioner shall
20 amend a certificate of birth to show paternity, if paternity is not
21 currently shown on the birth certificate, in the following
22 situations:

23 1. Upon request and receipt of a sworn acknowledgment of
24 paternity of a child born out of wedlock signed by both parents;

1 2. Upon receipt of a certified copy of a court order
2 adjudicating paternity; or

3 3. Upon receipt of an electronic record from the Department of
4 Human Services indicating that an acknowledgment of paternity has
5 been signed by both parents or a court order adjudicating paternity.

6 E. For a child born out of wedlock, the Commissioner shall also
7 change the surname of the child on the certificate:

8 1. To the specified surname upon receipt of acknowledgment of
9 paternity signed by both parents, upon receipt of a certified copy
10 of a court order directing such name be changed or upon receipt of
11 an electronic record from the Department of Human Services
12 indicating that an acknowledgment of paternity has been signed by
13 both parents or a court order directs such name change. Such
14 certificate amended pursuant to this subsection shall not be marked
15 "amended"; or

16 2. To the surname of the mother on the birth certificate in the
17 event the acknowledgment of paternity is rescinded.

18 F. The Commissioner shall have the power and duty to promulgate
19 rules for situations in which the Department receives false
20 information regarding the identity of a parent.

21 G. If within one (1) year of the initial issuance of a
22 certificate of death, a funeral director, or a person acting as
23 such, requests a correction to any portion of the death record
24 except the information relating to the medical certification

1 portion, due to a scrivener's error, misspelling or other correction
2 of information, the State Commissioner of Health, through the State
3 Registrar of Vital Statistics, shall amend the record, provided the
4 request is made in writing or through an electronic system and is
5 accompanied by documentation disclosing the correct information or
6 by a sworn statement of the funeral director. The funeral director,
7 or person acting as such, shall be responsible for any and all
8 amendment fees that may be imposed by the State Commissioner of
9 Health for the correction. Up to ten certified copies containing
10 the erroneous original information may be exchanged for certified
11 copies containing the corrected information at no additional cost.

12 H. ~~Beginning April 26, 2022, the biological sex designation on~~
13 ~~a~~ Every certificate of birth amended under this section shall ~~be~~
14 contain an accurate biological sex designation of either male or
15 female and shall not be, as identified at the time of birth. The
16 biological sex designation shall not be amended to display gender
17 identity, a nonbinary designation, or any symbol representing a
18 nonbinary designation including but not limited to the letter "X".

19 SECTION 6. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval."
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1 Passed the Senate the 29th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 1225

By: West (Kevin) and Woolley of
the House

3 and

4 Bergstrom of the Senate
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8 An Act relating to vital records; amending 63 O.S.
9 2021, Section 1-321, as last amended by Section 10,
10 Chapter 58, O.S.L. 2025 (63 O.S. Supp. 2025, Section
11 1-321), which relates to amendment of certificate or
12 records; prohibiting amendments to biological sex on
13 certificate of birth; and providing an effective
14 date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 7. AMENDATORY 63 O.S. 2021, Section 1-321, as
17 last amended by Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp.
18 2025, Section 1-321), is amended to read as follows:

19 Section 1-321. A. A certificate or record registered under
20 this article may be amended only in accordance with this article and
21 regulations thereunder adopted by the State Commissioner of Health
22 to protect the integrity and accuracy of vital statistics records.

23 B. A certificate that is amended under this section shall be
24 marked "amended", except as provided in subsection D of this
section. The date of amendment and a summary description of the

1 evidence submitted in support of the amendment shall be endorsed on
2 or made a part of the record.

3 The Commissioner shall prescribe by regulation the conditions under
4 which additions or minor corrections shall be made to birth
5 certificates within one (1) year after the date of birth without the
6 certificate being considered as amended. Certificates shall be
7 marked as "amended" for minor corrections made one (1) year after
8 the date of birth.

9 C. Upon receipt of a certified copy of a court order, from a
10 court of competent jurisdiction, changing the name of a person born
11 in this state and upon request of such person or his or her parent,
12 guardian or legal representative, the State Commissioner of Health
13 shall amend the certificate of birth to reflect the new name.

14 D. When a child is born out of wedlock, the Commissioner shall
15 amend a certificate of birth to show paternity, if paternity is not
16 currently shown on the birth certificate, in the following
17 situations:

18 1. Upon request and receipt of a sworn acknowledgment of
19 paternity of a child born out of wedlock signed by both parents;

20 2. Upon receipt of a certified copy of a court order
21 adjudicating paternity; or

22 3. Upon receipt of an electronic record from the Department of
23 Human Services indicating that an acknowledgment of paternity has
24 been signed by both parents or a court order adjudicating paternity.

1 E. For a child born out of wedlock, the Commissioner shall also
2 change the surname of the child on the certificate:

3 1. To the specified surname upon receipt of acknowledgment of
4 paternity signed by both parents, upon receipt of a certified copy
5 of a court order directing such name be changed or upon receipt of
6 an electronic record from the Department of Human Services
7 indicating that an acknowledgment of paternity has been signed by
8 both parents or a court order directs such name change. Such
9 certificate amended pursuant to this subsection shall not be marked
10 "amended"; or

11 2. To the surname of the mother on the birth certificate in the
12 event the acknowledgment of paternity is rescinded.

13 F. The Commissioner shall have the power and duty to promulgate
14 rules for situations in which the Department receives false
15 information regarding the identity of a parent.

16 G. If within one (1) year of the initial issuance of a
17 certificate of death, a funeral director, or a person acting as
18 such, requests a correction to any portion of the death record
19 except the information relating to the medical certification
20 portion, due to a scrivener's error, misspelling or other correction
21 of information, the State Commissioner of Health, through the State
22 Registrar of Vital Statistics, shall amend the record, provided the
23 request is made in writing or through an electronic system and is
24 accompanied by documentation disclosing the correct information or

1 by a sworn statement of the funeral director. The funeral director,
2 or person acting as such, shall be responsible for any and all
3 amendment fees that may be imposed by the State Commissioner of
4 Health for the correction. Up to ten certified copies containing
5 the erroneous original information may be exchanged for certified
6 copies containing the corrected information at no additional cost.

7 H. Beginning April 26, 2022, the biological sex designation ~~on~~
8 ~~a certificate of birth amended under this section shall be either~~
9 ~~male or female and shall not be nonbinary or any symbol representing~~
10 ~~a nonbinary designation including but not limited to the letter "X"~~
11 denoted to a child at birth on the certificate of birth shall not be
12 amended.

13 SECTION 8. This act shall become effective November 1, 2026.

14 Passed the House of Representatives the 11th day of March, 2026.

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16 _____
17 Presiding Officer of the House
18 of Representatives

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19 Passed the Senate the _____ day of _____, 2026.

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21 _____
22 Presiding Officer of the Senate

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